# SUPREME COURT OF INDIA

**APPELLATE JURISDICTION · THREE-JUDGE BENCH**

## Civil Appeal No. 5802 of 2022

**CNR: SCIN010058022022**

*Date: 29 September, 2022*

*Citation: (2023) 9 SCC 433*

**CORAM:** Hon'ble D.Y. Chandrachud, A.S. Bopanna, J.B. Pardiwala, JJ.

**Petitioner: X (Unmarried Woman)**

**- VERSUS -**

**Respondent: Principal Secretary, Health & Family Welfare Department, GNCTD**

**DOMAIN: REPRODUCTIVE RIGHTS & MEDICAL LAW** **STATUS: Good Law (Binding 3-Judge Precedent)**

### JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The artificial distinction between married and unmarried women under Rule 3B is discriminatory and violative of Article 14. Reproductive autonomy is a facet of personal liberty and bodily integrity under Article 21.

**STATUTES APPLIED:** Section 3(2)(b) MTP Act, Rule 3B MTP Rules, Article 21, Article 14

### DISPOSITION: RULE 3B MTP RULES INTERPRETED INCLUSIVELY

#### EXECUTIVE RATIO SUMMARY:

*Three-judge bench held that excluding unmarried or single women from terminating pregnancies between 20 and 24 weeks under Rule 3B is unconstitutional. Marital status cannot dictate reproductive rights.*

**LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE**

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